

**Calendar Lines 2 (Calendar Lines 2-8 involve the same Case)**

**Case Name:** *Norma Navarro v. Ralph Borelli et al.*

**Case No.:** **24CV453643**

PLAINTIFF'S MOTION TO COMPEL – Further Responses to Requests for Productions of Documents, Set One; and for Monetary Sanctions

**BACKGROUND**

Plaintiff Norma Navarro filed this action on December 10, 2024, against her former employer RNB Associates, Inc. and related defendants, asserting causes of action arising from alleged breach of employment agreements, wage claims under the Labor Code, fraud, elder abuse, accounting, and other theories. The complaint alleges that plaintiff worked for defendant RNB Associates, Inc. and its predecessors since 2009 until her termination in July 2024, serving as Chief Financial Officer since 2016. Plaintiff claims she was promised 25% of income from business projects pursuant to an April 2016 prenuptial agreement between plaintiff and defendant Ralph N. Borelli, and that defendants fraudulently concealed or reclassified projects to avoid payment. Plaintiff also asserts claims for unpaid wages, overtime, and paid time off.

On March 6, 2025, plaintiff served Requests for Production of Documents, Set One, comprising 47 requests. Defendant RNB Associates, Inc. served verified responses on or about May 9, 2025. The parties engaged in meet-and-confer correspondence on May 27, 2025, June 6 or 7, 2025, August 20, 2025, and September 17, 2025, and participated in a July 31, 2025 videoconference at the court's direction. Defendant served supplemental responses on October 24, 2025. The parties filed a Joint Separate Statement on February 4, 2026.

Plaintiff now moves to compel further responses to Requests for Production and seeks monetary sanctions. Defendant opposes the motion and requests sanctions against plaintiff and her counsel.

**LEGAL STANDARD**

Code of Civil Procedure section 2031.310, subdivision (a) authorizes a party to move for an order compelling further responses to requests for production of documents when the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general.

The moving party bears the burden of making a threshold showing of good cause for the production sought. The burden then shifts to the responding party to justify any objections. Discovery may relate to the claim or defense of any party, and discovery of information reasonably calculated to lead to admissible evidence is within the permissible scope. Cal. Code Civ. Proc. § 2017.010.

Objections based on privilege, trade secret, or privacy must be supported by specific factual showing. General and boilerplate objections are insufficient. When a responding party asserts objections but also produces documents, the response must state whether any responsive materials have been withheld based on the objections. Cal. Code Civ. Proc. § 2031.240(b).

The court shall impose monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel unless the court finds that the one subject to sanction acted with substantial justification or that other circumstances make imposition of the sanction unjust. Cal. Code Civ. Proc. § 2031.310(h).

## **PROCEDURAL MATTERS**

### **A. Meet and Confer**

Code of Civil Procedure section 2031.310, subdivision (b)(2) requires that a motion to compel further responses be accompanied by a meet-and-confer declaration. The declaration of Joseph G. Sweeney establishes that counsel sent a meet-and-confer letter on May 27, 2025, and that defendant responded on June 6 or 7, 2025. The parties participated in a July 31, 2025 videoconference at the court's direction, and exchanged further correspondence in August and September 2025. The meet-and-confer requirement has been satisfied.

### **B. Timeliness**

A motion to compel further responses must be served within 45 days of service of the verified response, or any supplemental verified response. Cal. Code Civ. Proc. § 2031.310(c). Defendant served initial responses on May 9, 2025. Plaintiff filed the motion on June 16, 2025, within the 45-day period. The motion is timely as to the initial responses.

## **ANALYSIS**

The Joint Separate Statement groups the disputed requests into several categories. The court addresses each category in turn.

### **A. Employment Records: RFPs 3-7, 10-19, 20, 22, 24**

**Requests 3-7** seek plaintiff's checks, paystubs, and paid time off records.

**Request 10** seeks records of hours worked by plaintiff.

**Requests 11-17, 19** seek employment handbooks, policies, and terms of employment applicable to plaintiff.

**Requests 20, 22, 24** seek plaintiff's employment agreements, personnel file, and performance appraisals.

Defendant responded to these requests with objections but stated it would produce all non-privileged documents which are believed to be responsive to this request and are in its possession custody and control. Defendant produced payroll registers for portions of plaintiff's employment, paystubs for the period May 2022 through July 2024, termination documents, a PTO accrual calculation, and a contractor handbook. In its September 17, 2025 meet-and-confer letter, defendant stated that plaintiff was a salaried, exempt employee who did not record daily hours worked, and that the responsive documents for hours worked were contained in the payroll records and PTO accrual.

In the Joint Separate Statement, defendant represents that it has produced all responsive documents in its possession, custody, and control, and that it is not withholding any documents based on privilege as to these requests.

Plaintiff contends the production is incomplete, asserting that it is inconceivable that the documents produced comprise all of plaintiff's employment records for a CFO employed from

2009 through July 2024. Plaintiff also contends that the paystubs do not reflect commissions paid to plaintiff.

### **Good Cause**

The employment records sought are directly relevant to plaintiff's wage and hour claims, including claims for unpaid overtime, unpaid paid time off, and breach of contract regarding compensation. The requests are not overbroad on their face. Good cause exists for production of plaintiff's own employment records.

### **Objections**

Defendant's objections to these requests—vague and ambiguous, overbroad as to time, burdensome and oppressive, irrelevant, privilege, and privacy—are not supported by adequate factual showing. With respect to plaintiff's own employment records, defendant has not established that such records are protected trade secrets under Evidence Code section 1060 or that they contain genuinely confidential proprietary information that cannot be addressed through a protective order.

The objection that requests extending back to 2009 or 2012 are overbroad as to time lacks substantial justification where plaintiff's employment began in 2009 and she asserts wage claims and contract claims spanning the length of her employment. While Labor Code section 1174 requires employers to maintain payroll records for only three years, the existence of a retention limit does not transform a proper request into an overbroad one. If defendant does not possess records from earlier periods because they were not retained, defendant must state that under oath in a code-compliant response.

Defendant's assertion that plaintiff was an exempt, salaried employee does not relieve defendant of the obligation to produce all responsive documents. Whether plaintiff was properly classified as exempt is a contested issue in this litigation.

### **Sufficiency of Responses**

The central issue as to these requests is whether defendant has in fact produced all responsive documents and whether defendant's responses comply with Code of Civil Procedure section 2031.240. That section requires that when a party produces documents in response to a demand but also asserts objections, the response must state whether any responsive materials have been withheld on the basis of those objections.

Defendant's responses state that defendant will produce all non-privileged documents which are believed to be responsive to this request and are in its possession custody and control, but the responses then assert multiple objections including privilege, privacy, confidentiality, and Evidence Code section 1060. This formulation creates ambiguity: it is unclear whether defendant is withholding documents based on any objection other than attorney-client privilege, and whether the production is complete or partial.

In the meet-and-confer correspondence, defendant stated that it is not withholding any documents other than those dealing with communications with counsel. This representation, if accurate, should be incorporated into verified supplemental responses. If defendant is not withholding any responsive documents based on its objections, defendant must state that clearly in a verified response for each request. If defendant has no additional responsive documents beyond those produced, defendant must state clearly that after a diligent search and reasonable

inquiry, it has produced all responsive documents in its possession, custody, or control, and that no documents are being withheld.

With respect to **Requests 20 and 24** (employment agreements and performance appraisals), defendant represents in the Joint Separate Statement that after a diligent and reasonable search, no such documents are in defendant's possession, custody, or control. This representation must be made in verified supplemental responses.

With respect to **Request 22** (personnel file), defendant represents that it produced the entirety of plaintiff's personnel file. If this representation is accurate and complete, defendant must so state in a verified supplemental response, clarifying that no documents from the personnel file are being withheld based on any objection.

**Conclusion as to RFPs 3-7, 10-17, 19, 20, 22, 24:** The motion is GRANTED to the limited extent that defendant shall serve verified supplemental responses, without objections, within 20 days, stating clearly for each request: (a) whether any responsive documents are being withheld pursuant to any objection, and if so, identifying the documents withheld with sufficient particularity to enable plaintiff to evaluate the objection; or (b) that after a diligent search and reasonable inquiry, defendant has produced all responsive documents in its possession, custody, or control and is not withholding any responsive documents based on any objection; or (c) that after a diligent search and reasonable inquiry, no responsive documents exist in defendant's possession, custody, or control.

#### **B. Request 18**

Plaintiff stated in the August 20, 2025 meet-and-confer correspondence that plaintiff agreed to drop further pursuit of an amended response to Request 18. The motion as to Request 18 is DENIED as moot.

#### **C. All Documents Containing Plaintiff's Name or References to Plaintiff: RFPs 23, 26-29**

**Request 23** seeks all documents that refer to plaintiff or contain plaintiff's name.

**Request 26** seeks all correspondence regarding plaintiff's employment.

**Request 27** seeks all correspondence to and from plaintiff.

**Request 28** seeks all correspondence pertaining to plaintiff.

**Request 29** seeks all correspondence referring to plaintiff where plaintiff was not an intended recipient.

These requests, as originally propounded, are overbroad in scope and time, and unduly burdensome. The requests span plaintiff's entire employment and seek every document or communication that mentions plaintiff, regardless of relevance to the claims or defenses in this action.

Plaintiff proposed limitations in the August 20, 2025 meet-and-confer letter, offering to narrow Request 23 to eight topic areas: documents discussing plaintiff's involvement in projects, paid time off, overtime, compensation, distributions as defined in the prenuptial agreement, consultation fees, certain identified business entities, and quarterly meetings. Plaintiff clarified that these topics were not intended as exclusive search terms but as categories of relevance.

Defendant responded that even these proposed limitations remained overbroad and would require searching every document and email from plaintiff's entire employment. Defendant invited plaintiff to propose search terms and to limit the time frame to the applicable

statute of limitations. Defendant noted that as CFO, plaintiff was included on emails discussing compensation and paid time off for other employees, raising relevance and third-party privacy concerns, and that Request 29 would require defendant to review every email of every employee to identify communications referring to plaintiff.

Plaintiff declined to propose search terms or further narrow the requests, declaring an impasse.

The court finds that Requests 23, 26, 27, 28, and 29, even as proposed to be limited by plaintiff, remain overbroad and unduly burdensome without further narrowing. Defendant's objections to these requests are substantially justified. A demand that requires the responding party to review every document in its possession over a multi-year period for any mention of an employee who served as CFO and was involved in multiple business dealings is not reasonably particularized and imposes a burden on the responding party that exceeds the probative value of the information sought.

California law requires that requests for production designate documents either by specifically describing each individual item or by reasonably particularizing each category of item. Cal. Code Civ. Proc. § 2031.030(c)(1). While plaintiff is entitled to discover documents and communications relevant to her claims—including those concerning her compensation, hours, projects worked, entitlement to distributions, and related matters—plaintiff must tailor her requests in a manner that does not require an unduly burdensome search.

The appropriate remedy is not to deny the requests outright but to require further narrowing. The court will order the parties to meet and confer further with respect to these requests, with the following parameters:

**Time Limitation:** The temporal scope of these requests should be limited to avoid imposing undue burden. The parties shall meet and confer on an appropriate time limitation, considering the applicable statute of limitations and the periods relevant to plaintiff's specific claims.

**Search Terms:** Plaintiff shall propose specific search terms that will enable defendant to identify responsive documents without reviewing every document and email in its possession. The parties shall meet and confer on reasonable search terms, recognizing that overly broad search terms are likely to yield numerous irrelevant documents, while narrower terms focusing on the specific projects, agreements, and payment arrangements at issue will be more productive.

**Custodians:** The parties may consider limiting the search to the files and communications of specified custodians rather than all employees.

**Third-Party Privacy:** To the extent responsive documents contain information about employees other than plaintiff, the parties shall meet and confer on whether redaction or a stipulated protective order is appropriate.

**Request 29:** Given the unique burden imposed by Request 29 (seeking communications referring to plaintiff where plaintiff was not a recipient), plaintiff must demonstrate specific relevance and good cause for this request. If plaintiff seeks evidence of communications about her that she was not privy to—such as communications among management discussing her termination, performance, compensation, or role in specific projects—plaintiff should narrow Request 29 to specific topic areas, time periods, and custodians.

**Conclusion as to RFPs 23, 26-29:** The motion is DENIED without prejudice. The parties are ordered to meet and confer further within 30 days in accordance with the parameters set forth above. If the parties are unable to resolve the dispute, plaintiff may notice a further motion addressing these specific requests.

**D. Contracts and Agreements with Third Parties: RFPs 31-33**

**Request 31** seeks all contracts and agreements between defendant and any other business entity regarding any project from 2013 through 2024.

**Request 32** seeks all contracts and agreements between defendant and any other business entity for participation in any project from 2013 through 2024.

**Request 33** seeks all contracts and agreements between defendant and any other business entity involving real estate development from 2013 through 2024.

These requests are overbroad. They seek every contract between defendant and any third party over an 11-year period, without limitation to contracts relevant to plaintiff's compensation or to projects in which plaintiff allegedly held an interest.

Plaintiff contends that the requests are necessary to identify projects, trace income, and determine what compensation was owed to plaintiff under the 2016 prenuptial agreement. This rationale has facial merit as to contracts related to projects in which plaintiff participated or as to which she claims an entitlement to distributions. However, the requests as drafted sweep far more broadly.

Defendant objects that the requests are not limited by relevance to this case, ignore confidentiality concerns, and extend beyond the applicable statute of limitations. These objections are substantially justified.

Plaintiff may discover contracts and agreements pertaining to projects as to which she claims an interest or entitlement to compensation. Plaintiff may not, through these blanket requests, obtain defendant's entire contract file with every business partner over more than a decade. Plaintiff must identify the projects, business entities, or subject matter as to which she seeks contracts, with sufficient particularity to enable defendant to locate and produce the requested contracts without conducting a wholesale review of its business files.

If plaintiff contends she cannot identify specific projects without first obtaining the requested discovery, plaintiff may seek more narrowly tailored discovery designed to identify projects—for example, interrogatories asking defendant to identify all real estate development projects undertaken by defendant during specified time periods in which plaintiff was involved or as to which distributions were made. Once projects are identified, plaintiff may propound targeted requests for contracts related to those projects.

**Conclusion as to RFPs 31-33:** The motion is DENIED. Defendant's objections are substantially justified. The requests are overbroad and unduly burdensome as drafted. Plaintiff may propound narrower, more targeted requests for contracts related to specific projects, entities, or time periods relevant to her claims.

**E. Financial Information and Records of Third-Party Transactions: RFPs 34, 36, 39-45**

**Request 34** seeks all distribution, profit and loss, and financial statements for defendant from 2016 through 2024.

**Request 36** seeks documents showing participation by defendant in any project or business venture from 2016 through 2024.

**Request 39** seeks all accounting records for defendant from 2016 through 2024.

**Requests 40–45** seek bank records, loan applications and documentation, and records of financial transactions with numerous specifically identified third parties and entities.

These requests seek defendant's comprehensive financial records and business dealings over an eight or nine-year period. Defendant objects on grounds of relevance, overbreadth, privacy, confidentiality, and the requirement of Civil Code section 3295 that discovery of a defendant's financial condition for purposes of punitive damages be preceded by a court order on noticed motion showing substantial probability that plaintiff will prevail on the punitive damages claim.

Plaintiff asserts that the financial information is relevant to her claims that she is entitled to 25% of income from business projects, that defendants concealed or reclassified projects to avoid payment, and that she is entitled to an accounting. Plaintiff also seeks the financial information to support claims for punitive damages.

The court finds that these requests, as presently framed, are overbroad and raise significant concerns regarding confidentiality, privacy, and proportionality.

### **Civil Code Section 3295**

Civil Code section 3295, subdivision (c) provides that before discovery may be conducted regarding the defendant's financial condition for purposes of determining punitive damages, the plaintiff must bring a noticed motion accompanied by a memorandum showing there is a substantial probability that the plaintiff will prevail on the punitive damages claim. Plaintiff has not brought such a motion. Discovery of defendant's comprehensive financial condition—including financial statements, accounting records, and bank records—for the purpose of establishing punitive damages is premature absent compliance with Civil Code section 3295(c). Defendant's objection on this ground is well-taken.

### **Relevance to Substantive Claims**

To the extent plaintiff seeks financial information not for punitive damages but to support her substantive claims—including the breach of contract claim regarding distributions, the fraud and concealment claims, and the accounting cause of action—plaintiff must establish specific relevance.

Plaintiff's theory is that she is entitled to 25% of income from specified business projects pursuant to the 2016 prenuptial agreement. If this theory is correct, plaintiff may be entitled to discover financial records showing defendant's income from those specific projects. However, plaintiff has not established good cause for production of defendant's entire financial records—covering all business dealings, all income and expenses, all distributions, all loans, and all transactions with numerous third parties—over an eight or nine-year period.

An accounting is an equitable remedy available where the plaintiff has a right to share in profits or assets and the defendant has failed to provide an accounting. The scope of the accounting is determined by the nature of the relationship and the plaintiff's claimed interest. Discovery in support of an accounting cause of action should be targeted to the transactions and matters at issue, not to the entirety of a business's financial records.

Similarly, plaintiff's fraud and concealment claims allege that defendants misrepresented or concealed information about specific projects and distributions to which plaintiff was entitled. Discovery in support of those claims should be targeted to the projects and transactions at issue.

Defendant has legitimate confidentiality interests in its financial records, including proprietary business information and financial dealings with third parties. These interests must be balanced against plaintiff's need for discovery. Broad requests for financial information covering all business activities over many years are disproportionate to plaintiff's claimed interest in distributions from specific projects.

### **Remedy**

The appropriate approach is for plaintiff to identify the specific projects, distributions, or transactions as to which she seeks financial information, and to propound targeted requests for records related to those identified matters. If plaintiff requires preliminary discovery to identify such projects or transactions, plaintiff may propound such discovery first, and then seek financial records pertaining to the identified projects.

If plaintiff seeks comprehensive financial discovery for purposes of punitive damages, plaintiff must first comply with Civil Code section 3295(c) by bringing a noticed motion establishing a substantial probability of prevailing on the punitive damages claim.

**Conclusion as to RFPs 34, 36, 39-45:** The motion is DENIED. Defendant's objections based on relevance, overbreadth, confidentiality, and Civil Code section 3295 are substantially justified. Plaintiff may propound more narrowly tailored requests for financial information related to specific identified projects, transactions, or time periods relevant to her claims, and may seek relief under Civil Code section 3295(c) if she wishes to pursue comprehensive financial discovery for punitive damages purposes.

### **F. Request for Production 46: Privilege Log**

**Request 46** seeks a list of all documents and communications withheld based on the objection of attorney-client privilege.

Defendant objected to this request as unduly burdensome and not properly tailored to this litigation. In meet-and-confer correspondence, defendant represented that it is withholding only attorney-client communications and declined to provide a privilege log on the ground that the request is not limited to documents relevant to this case.

Code of Civil Procedure section 2031.240, subdivision (c)(1) requires that when a party withholds documents based on a privilege, the response must expressly state that the responsive documents are being withheld and provide sufficient factual information to enable the demanding party to evaluate the privilege claim.

However, the responding party's obligation to provide a privilege log arises in connection with specific requests for production to which the privilege is asserted as an objection. The privilege log should identify documents responsive to the requests propounded, not create a freestanding obligation to list every privileged document in the party's possession regardless of relevance to the case.

Request 46, as drafted, could be read to seek a list of all attorney-client communications in defendant's possession, without limitation to communications responsive to the other requests in this set or relevant to this litigation. Such an interpretation would be overbroad.

If defendant has withheld documents responsive to any of plaintiff's Requests for Production on the basis of attorney-client privilege, defendant must provide a privilege log identifying those documents with sufficient particularity. This obligation arises from Code of Civil Procedure section 2031.240(c)(1), not from Request 46 as a freestanding demand.

To the extent Request 46 seeks a privilege log for documents withheld in response to other requests in this set, the obligation to provide such a log is already imposed by statute. To the extent Request 46 seeks a list of all privileged documents beyond those responsive to plaintiff's requests, the demand is overbroad.

**Conclusion as to RFP 46:** The motion is DENIED. To the extent defendant has withheld documents responsive to any of plaintiff's Requests for Production based on attorney-client privilege (or any other privilege), defendant shall provide a privilege log within 20 days, in compliance with Code of Civil Procedure section 2031.240(c)(1), identifying each such document with sufficient particularity to enable plaintiff to evaluate the privilege claim.

#### **G. Remaining Requests**

To the extent any request listed in the notice of motion is not addressed above and remains in dispute, the parties shall meet and confer further.

#### **SANCTIONS**

Both parties request monetary sanctions.

Plaintiff requests sanctions in the amount of \$14,300 against defendant and its counsel, based on over 20 hours preparing the motion, 6 hours preparing for and attending the hearing, at \$500 per hour, plus \$300 in costs.

Defendant requests sanctions in the amount of \$7,185 against plaintiff and her counsel.

Code of Civil Procedure section 2031.310, subdivision (h) provides that the court shall impose monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel further responses, unless the court finds that the party acted with substantial justification or that other circumstances make imposition of the sanction unjust.

The court finds that both parties have acted with substantial justification as to portions of the motion and without substantial justification as to other portions.

Plaintiff has prevailed in part, in that defendant's responses to Requests 3-7, 10-17, 19, 20, 22, and 24 are found to be deficient and must be supplemented to clarify whether any documents are being withheld. These requests seek basic employment records pertaining to plaintiff, and defendant's objections to production of such records were not substantially justified. Defendant's responses created ambiguity by asserting objections while stating that all non-privileged documents were being produced, without clarifying which (if any) documents were being withheld or whether the production was complete. This lack of clarity necessitated the motion.

However, plaintiff has not prevailed as to Requests 23, 26-29, 31-33, 34, 36, 39-46. Defendant's objections to these requests were substantially justified. The requests were

overbroad, unduly burdensome, or sought information protected by confidentiality or statutory limitations. Plaintiff refused to narrow these requests despite defendant's repeated invitations during the meet-and-confer process. Plaintiff's insistence on proceeding with these requests without meaningful narrowing was not substantially justified.

The court further finds that plaintiff's request for over 26 hours of attorney time for a discovery motion is excessive. Both parties have incurred fees as a result of disputes that could have been resolved or narrowed through more effective meet-and-confer efforts.

Under these circumstances, the court declines to impose sanctions on either party. Both parties acted with substantial justification as to portions of the discovery dispute, and both parties contributed to the need for court intervention through an impasse in the meet-and-confer process. The court finds that the circumstances make imposition of sanctions unjust.

Sanctions are DENIED as to both parties.

### **DISPOSITION**

Plaintiff's motion to compel further responses to Requests for Production, Set One, is GRANTED IN PART and DENIED IN PART as follows:

a. **RFPs 3-7, 10-17, 19, 20, 22, 24:** GRANTED. Defendant shall serve verified, code-compliant supplemental responses within 20 days, stating clearly for each request whether any responsive documents are being withheld pursuant to any objection (and if so, identifying such documents with sufficient particularity), or stating that defendant has produced all responsive documents in its possession, custody, or control and is not withholding any responsive documents based on any objection, or stating that after a diligent search and reasonable inquiry, no responsive documents exist in defendant's possession, custody, or control.

b. **RFP 18:** DENIED as moot.

c. **RFPs 23, 26-29:** DENIED without prejudice. The parties shall meet and confer further within 30 days in accordance with the parameters set forth in Section IV.C above.

d. **RFPs 31-33:** DENIED. Defendant's objections are substantially justified.

e. **RFPs 34, 36, 39-45:** DENIED. Defendant's objections are substantially justified.

f. **RFP 46:** DENIED. To the extent defendant has withheld documents responsive to any request based on privilege, defendant shall provide a privilege log within 20 days in compliance with Code of Civil Procedure section 2031.240(c)(1).

Plaintiff's request for monetary sanctions is DENIED.

Defendant's request for monetary sanctions is DENIED.

PLAINTIFF to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

**Calendar Line 3**

**Case Name:** *Norma Navarro v. Ralph Borelli et al.*

**Case No.:** **24CV453643**

Plaintiff Norma Navarro's Motion to Compel Further Responses by Defendant RNB Associates, Inc. to Plaintiff's Special Interrogatories, Set One, and for Sanctions.

**BACKGROUND**

Plaintiff Norma Navarro filed this action on December 10, 2024, against her former employer RNB Associates, Inc. and related defendants, asserting causes of action arising from alleged breach of employment agreements, wage claims under the Labor Code, fraud, elder abuse, accounting, and other theories. The complaint alleges that plaintiff worked for defendant RNB Associates, Inc. and its predecessors since 2009 until her termination in July 2024, serving as Chief Financial Officer since 2016. Plaintiff claims she was promised 25% of income from business projects pursuant to an April 2016 prenuptial agreement between plaintiff and defendant Ralph N. Borelli, and that defendants fraudulently concealed or reclassified projects to avoid payment. Plaintiff also asserts claims for unpaid wages, overtime, and paid time off.

Plaintiff served Special Interrogatories, Set One on June 26, 2025. Defendant served responses on August 20, 2025 consisting largely of objections with limited substantive information. Plaintiff's counsel served a meet-and-confer letter on September 4, 2025 identifying the deficiencies and proposing a narrowed scope.

Defendant responded to the meet-and-confer letter on September 17, 2025, declining to amend its responses. Defendant served amended responses on September 22, 2025, which are unrelated to the interrogatories at issue on this motion.

The motion challenges responses to Special Interrogatories Nos. 3, 7, 9, 10, and 12-17. No opposition has been filed.

**LEGAL STANDARD**

Code of Civil Procedure section 2030.300 governs motions to compel further responses to interrogatories. Under subdivision (a), on receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate; or (3) an objection to an interrogatory is without merit or too general.

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to interrogatories, unless

it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Code Civ. Proc. § 2030.300(d).

The responding party has the burden of justifying its objections and demonstrating that the interrogatories are not within the scope of disclosure. Discovery may relate to the claim or defense of any party to the action, and discovery of information reasonably calculated to lead to admissible evidence is within the permissible scope. Cal. Code Civ. Proc. § 2017.010.

Responses to interrogatories must be as complete and straightforward as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible. Cal. Code Civ. Proc. § 2030.220(a), (b).

A motion to compel further responses must be accompanied by a separate statement setting forth the interrogatory, the response, and a statement of factual and legal reasons for compelling further responses as to each interrogatory. Cal. Rules of Court, rule 3.1345(a).

## **MEET AND CONFER REQUIREMENT**

Code of Civil Procedure section 2030.300(b) requires that a motion to compel further responses be accompanied by a declaration stating facts showing a reasonable and good-faith attempt at informal resolution. The record reflects that Plaintiff's counsel served a substantive meet-and-confer letter on September 4, 2025, and that Defendant responded on September 17, 2025 declining to amend its responses. The meet-and-confer requirement has been satisfied.

## **ANALYSIS**

### **Disputed Interrogatories**

The motion challenges responses to Special Interrogatories Nos. 3, 7, 9, 10, and 12-17. Defendant's responses consist primarily of objections asserting that the interrogatories are vague and ambiguous, overbroad as to time and scope, burdensome and oppressive, seek irrelevant information, call for expert opinion, and would require disclosure of confidential, proprietary, or financial information protected by privacy and Evidence Code section 1060.

**Special Interrogatory No. 3** seeks an explanation of the terms and policies governing Plaintiff's employment with RNB Associates from 2009 through 2024, including policies governing wages, overtime, vacation, and paid time off. Defendant interposed objections and, pursuant to Code of Civil Procedure section 2030.230, referred to documents produced under Bates range RNB\_000063 to RNB\_000183.

**Special Interrogatory No. 7** seeks identification of all business income received from Borelli Investment Company from 2014 through 2024. Defendant interposed objections and provided no substantive response.

**Special Interrogatory No. 9** seeks identification of all companies and business entities with which RNB Associates, Inc. was affiliated from 2014 through 2024. Defendant interposed objections and provided no substantive response.

**Special Interrogatory No. 10** seeks identification of all companies and business entities that have been merged into RNB Associates, together with the date of merger. Subject to objections, Defendant identified Borelli Motor Sports, Inc., Borelli Development Company, and Racers Insurance Services, Inc., each with a merger date of January 1, 2015.

**Special Interrogatory No. 12** seeks identification of all projects on which Plaintiff was paid from 2016 through 2024. Subject to objections, Defendant provided a list of projects.

**Special Interrogatory No. 13** seeks identification of all projects with which RNB Associates was involved from 2016 through 2024. Defendant interposed objections and provided no substantive response.

**Special Interrogatory No. 14** seeks identification of projects that were not concluded prior to Plaintiff's termination. Defendant interposed objections and provided no substantive response.

**Special Interrogatory No. 15** seeks identification of all projects with which RNB Associates is currently involved. Defendant interposed objections and provided no substantive response.

**Special Interrogatory No. 16** seeks an explanation of the reasons for non-payment on any projects for which Plaintiff was not paid. Defendant interposed objections and provided no substantive response.

**Special Interrogatory No. 17** seeks, for each project identified in Defendant's responses, the source of the payment received. Defendant interposed objections and provided no substantive response.

### **Evaluation of Objections**

**Vague and Ambiguous:** Defendant objects that the interrogatories are vague and ambiguous, particularly as to terms like business income, affiliated with, and projects. These terms are readily understandable in the context of an employment and contract dispute involving a real estate development company. The interrogatories are not so ambiguous as to preclude a response. A party cannot refuse to answer an interrogatory on grounds of ambiguity where the meaning can be reasonably ascertained.

**Overbreadth as to Time:** Defendant objects that requests extending to 2014 or earlier are overbroad. Given the nature of Plaintiff's claims—including alleged fraud and breach of promises regarding commission payments under a 2016 prenuptial agreement—discovery concerning the business structure and financial arrangements in the years preceding and following that agreement is reasonably calculated to lead to admissible evidence. However, the court finds that discovery prior to 2016 is less directly relevant to claims arising from the prenuptial agreement executed in 2016. The court will narrow the temporal scope where appropriate.

**Relevance:** The interrogatories directly relate to Plaintiff's claims that she was entitled to 25% of income from business projects and that Defendant concealed or reclassified projects to avoid payment. Information concerning the company's business relationships, affiliated entities, mergers, income sources, and individual projects is relevant to establishing the existence and value of projects, tracing income, and determining what compensation was owed to Plaintiff.

**Privacy and Confidentiality:** Defendant asserts privacy objections under Evidence Code section 1060 and claims that the interrogatories seek confidential, proprietary, and financial information. However, corporations do not possess a constitutional right of privacy as to their financial information. The mere assertion of privacy or confidentiality, without factual support demonstrating a legitimate privacy interest and how that interest outweighs the need for discovery, is insufficient to sustain the objection. Defendant has made no showing that the

requested information involves trade secrets or genuinely confidential business information that cannot be addressed through a protective order.

**Civil Code Sections 3294 and 3295:** Defendant objects that Civil Code sections 3294 and 3295 require a court order for discovery of financial information. Those statutes govern discovery of a defendant's financial condition for purposes of punitive damages. The objection does not justify a complete refusal to respond where the interrogatories seek financial information relevant to the substantive claims themselves—breach of contract, fraud, accounting, unpaid wages—and not solely for punitive damages.

**Burdensome and Oppressive:** Defendant's general assertion that the interrogatories are burdensome and oppressive is unsupported by any factual showing. A party resisting discovery on grounds of burden or oppression must provide evidence showing the nature and extent of the burden. No such evidence has been presented.

**Expert Opinion:** Defendant's objection that Special Interrogatory No. 7 calls for expert opinion is without merit. Identifying income received from a particular source does not require expert opinion; it requires a review of the responding party's own books and records.

#### **Verification Deficiency**

As to Special Interrogatories Nos. 3, 10, and 12, Defendant provided substantive information following its objections but failed to clarify whether any information is being withheld based on the asserted objections. When a party asserts objections but then provides a response without waiving those objections, the responding party must identify what, if anything, is being withheld. If Defendant is not withholding any information based on its objections, that representation must be made under oath in a verified supplemental response.

#### **DISPOSITION**

The motion to compel further responses to Special Interrogatories Set One is **GRANTED IN PART** as follows:

**Special Interrogatory No. 3:** The motion is GRANTED to the limited extent that Defendant shall serve a verified supplemental response stating whether any documents or information responsive to this interrogatory are being withheld pursuant to any objection. If no information or documents are being withheld, Defendant shall so state under oath.

**Special Interrogatory No. 7:** The motion is GRANTED. Defendant's objections are overruled. Defendant shall provide a verified, code-compliant response without objections identifying all business income received from Borelli Investment Company from 2016 through 2024.

**Special Interrogatory No. 9:** The motion is GRANTED. Defendant's objections are overruled. Defendant shall provide a verified, code-compliant response without objections identifying all companies and business entities with which RNB Associates, Inc. was affiliated from 2016 through 2024.

**Special Interrogatory No. 10:** The motion is GRANTED to the limited extent that Defendant shall serve a verified supplemental response stating whether any information responsive to this interrogatory is being withheld pursuant to any objection. If no information is being withheld, Defendant shall so state under oath.

**Special Interrogatory No. 12:** The motion is GRANTED to the limited extent that Defendant shall serve a verified supplemental response stating whether any information responsive to this interrogatory is being withheld pursuant to any objection. If no information is being withheld, Defendant shall so state under oath.

**Special Interrogatory No. 13:** The motion is GRANTED. Defendant's objections are overruled. Defendant shall provide a verified, code-compliant response without objections identifying all projects RNB Associates was involved with from 2016 through 2024.

**Special Interrogatory No. 14:** The motion is GRANTED. Defendant's objections are overruled. Defendant shall provide a verified, code-compliant response without objections identifying all projects that were not concluded prior to Plaintiff's termination.

**Special Interrogatory No. 15:** The motion is GRANTED. Defendant's objections are overruled. Defendant shall provide a verified, code-compliant response without objections identifying all projects RNB Associates is currently involved with.

**Special Interrogatory No. 16:** The motion is GRANTED. Defendant's objections are overruled. Defendant shall provide a verified, code-compliant response without objections explaining the reasons for non-payment to Plaintiff for any projects on which Plaintiff was not paid.

**Special Interrogatory No. 17:** The motion is GRANTED. Defendant's objections are overruled. Defendant shall provide a verified, code-compliant response without objections stating, for each project identified in responses to these special interrogatories for which RNB Associates received payment, the source of the payment.

Defendant shall serve verified, code-compliant supplemental responses within twenty (20) days of the date of this order.

### **SANCTIONS**

Plaintiff requests monetary sanctions in the amount of \$14,300, based on 26 hours of attorney time at \$500 per hour and \$300 in filing and related costs.

Code of Civil Procedure section 2030.300(d) provides that the court shall impose a monetary sanction against any party who unsuccessfully makes or opposes a motion to compel further responses, unless the court finds that the party acted with substantial justification or that other circumstances make imposition of the sanction unjust.

Defendant has not opposed the motion and therefore has not demonstrated substantial justification for its objections. The objections asserted were largely boilerplate and lacked the factual support necessary to withstand scrutiny. Monetary sanctions are warranted.

However, the amount requested is excessive for a discovery motion of this nature. The court finds that 26 hours of attorney time is unreasonable for preparation of a motion to compel further responses to interrogatories. A reasonable amount of time for such a motion, including preparation of the notice, memorandum, separate statement, declarations, and attendance at the hearing, is 8 hours

Accordingly, sanctions are imposed against Defendant RNB Associates, Inc. and its counsel of record, jointly and severally, in the amount of \$4,300.00, representing 8 hours at \$500 per hour plus \$300 in costs.

Sanctions shall be paid to Plaintiff's counsel within thirty (30) days of the date of this order.

**DISPOSITION**

The motion to compel further responses is GRANTED as set forth above.

Defendant RNB Associates, Inc. shall serve verified, code-compliant supplemental responses within twenty (20) days.

Monetary sanctions are imposed against Defendant RNB Associates, Inc. and its counsel of record, jointly and severally, in the amount of \$4,300.00, payable to Plaintiff's counsel within thirty (30) days.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

- oo0oo -

**Calendar line 4**

**(OFF CALENDAR)**

**- 00000 -**

**Calendar Line 5****Case Name:** *Norma Navarro v. Ralph Borelli et al.***Case No.:** **24CV453643****DEFENDANTS' MOTION TO QUASH DEPOSITION SUBPOENA ISSUED TO KB HOME SOUTH BAY INC. AND REQUEST FOR MONETARY SANCTIONS****BACKGROUND**

Plaintiff Norma Navarro filed this action on December 10, 2024, against her former employer RNB Associates, Inc. and related defendants, asserting causes of action arising from alleged breach of employment agreements, wage claims under the Labor Code, fraud, elder abuse, accounting, and other theories. The complaint alleges that plaintiff worked for defendant RNB Associates, Inc. and its predecessors since 2009 until her termination in July 2024, serving as Chief Financial Officer since 2016. Plaintiff claims she was promised 25% of income from business projects pursuant to an April 2016 prenuptial agreement between plaintiff and defendant Ralph N. Borelli, and that defendants fraudulently concealed or reclassified projects to avoid payment. Plaintiff also asserts claims for unpaid wages, overtime, and paid time off.

The subpoena at issue was directed to KB Home South Bay, Inc. It commands production, for the period 2016 through 2025, of records relating to Ralph Borelli and RNB Associates, Inc., including bank statements, deposit slips, cancelled checks, signature cards, mortgage and loan documents, wire transfer records, account opening documents, transaction records, financial statements, correspondence, and loan applications.

After service of the subpoena, the parties met and conferred. Plaintiff declined to withdraw or narrow the subpoena. Defendants now move to quash and for monetary sanctions of \$1,505.00.

**LEGAL STANDARD**

Code of Civil Procedure section 1987.1, subdivision (a), authorizes the court, on motion, to quash a subpoena entirely, modify it, or direct compliance on stated terms and conditions, including protective orders. The statute expressly empowers the court to protect any person from unreasonable or oppressive demands and from unreasonable violations of the right of privacy.

Under Code of Civil Procedure section 2017.010, discovery is confined to matters relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. Where the discovery sought implicates a constitutionally protected privacy interest, the party seeking disclosure must demonstrate that the information is directly relevant to a claim or defense and essential to a fair resolution of the litigation, and that less intrusive means are unavailable.

Civil Code section 3295, subdivision (c), further restricts pretrial discovery of a defendant's financial condition in aid of a punitive damages claim: such discovery is not permitted absent a court order entered upon a noticed motion showing a substantial probability that the plaintiff will prevail on the claim for punitive damages.

## **ANALYSIS**

### **A. Relevance and Scope**

The subpoena is facially overbroad. It reaches back nearly a decade and sweeps in every category of financial record between defendants and a third-party homebuilder, without limitation as to project, transaction, or subject matter. The temporal reach exceeds the limitations periods governing plaintiff's longest-running claims, and the categorical reach — every bank statement, wire transfer, loan document, mortgage record, and item of correspondence — bears no discernible connection to the wages, commissions, or profit distributions plaintiff seeks to recover.

Plaintiff's compensation theory turns on identifying specific projects on which she served as CFO and specific income streams alleged to have been concealed or misclassified. Discovery narrowly tailored to those projects and income streams would fall comfortably within section 2017.010. This subpoena is not so tailored. Nothing in the record before the court identifies KB Home South Bay, Inc. as a counterparty to a project on which plaintiff served as CFO, a venture governed by the prenuptial agreement, or a transaction alleged to have been concealed from plaintiff. Absent that showing, the court cannot conclude that comprehensive financial records of this third party's dealings with defendants are relevant, let alone directly relevant, to the claims in suit.

### **B. Privacy**

The records demanded implicate substantial privacy interests protected by Article I, section 1 of the California Constitution. Bank records, loan applications, mortgage instruments, and wire transfer histories lie at the core of that protection, and the interests at stake are not confined to the named defendants: production would necessarily disclose information concerning non-party account holders, counterparties, and affiliated entities.

Where such interests are implicated, the burden falls on the propounding party to establish direct relevance, essentiality to a fair adjudication, and the absence of less intrusive alternatives. That showing has not been made. The subpoena is not limited to the projects, entities, or transactions on which plaintiff's compensation theory depends, and no reason appears why the discovery could not be pursued in the first instance through party discovery directed at defendants.

### **C. Premature Financial-Condition Discovery**

To the extent the subpoena is designed to develop evidence of defendants' overall financial condition — as its demand for complete loan applications, mortgage files, and multi-year banking histories suggests — Civil Code section 3295, subdivision (c), bars that inquiry at this stage. No order under that subdivision has been sought or entered, and no prima facie showing supporting punitive damages has been made. The subpoena cannot be sustained on that footing.

#### **D. Burden on the Third Party**

The subpoena imposes a substantial and unjustified burden on a non-litigant. KB Home South Bay, Inc. is commanded to identify, gather, and produce nine years of records across nearly every category of financial documentation in its possession concerning its dealings with defendants. Section 1987.1 directs the court to protect third parties from precisely this kind of unreasonable and oppressive demand.

### **SANCTIONS**

Code of Civil Procedure sections 1987.1, subdivision (a), and 1987.2, subdivision (a), authorize the court to award reasonable expenses, including attorney's fees, incurred in making or opposing a motion to quash where the opposing party acted without substantial justification, and provide that such an award is mandatory unless the court finds substantial justification or other circumstances making the award unjust.

The court finds no substantial justification for the subpoena as issued. It is untailored in time, subject matter, and target; it seeks financial records of a third party with no established nexus to plaintiff's compensation claims; and it was not narrowed or withdrawn after meet-and-confer efforts.

The fees requested — five attorney hours total, comprising three hours of associate time at \$275 per hour and two hours of partner time at \$340 per hour, for a combined \$1,505.00 — are reasonable in rate and in time for a motion of this type, supported by a separate statement and declaration.

### **DISPOSITION**

The motion to quash the deposition subpoena issued to KB Home South Bay, Inc. is GRANTED. The subpoena is quashed in its entirety.

Monetary sanctions are awarded against plaintiff Norma Navarro and her counsel of record, jointly and severally, in the amount of \$1,505.00, payable to defendants' counsel within thirty (30) days of the date of this order.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

**Calendar Line 6**

**Case Name:** *Norma Navarro v. Ralph Borelli et al.*

**Case No.:** 24CV453643

DEFENDANTS' MOTION TO QUASH DEPOSITION SUBPOENA ISSUED TO BORELLI INVESTMENT COMPANY (AKA R.N. BORELLI, INC.) AND REQUEST FOR MONETARY SANCTIONS

**BACKGROUND**

Plaintiff Norma Navarro filed this action on December 10, 2024, against her former employer RNB Associates, Inc. and related defendants, asserting causes of action arising from alleged breach of employment agreements, wage claims under the Labor Code, fraud, elder abuse, accounting, and other theories. The complaint alleges that plaintiff worked for defendant RNB Associates, Inc. and its predecessors since 2009 until her termination in July 2024, serving as Chief Financial Officer since 2016. Plaintiff claims she was promised 25% of income from business projects pursuant to an April 2016 prenuptial agreement between plaintiff and defendant Ralph N. Borelli, and that defendants fraudulently concealed or reclassified projects to avoid payment. Plaintiff also asserts claims for unpaid wages, overtime, and paid time off.

On or about May 22, 2025, plaintiff caused a business-records subpoena to be served on Borelli Investment Company. The subpoena commands production of all corporate records without temporal limitation, including the share register, board composition, bylaws, corporate minute book, all bank accounts and trust accounts associated with the entity, all transactions and correspondence and contracts with Ralph Borelli and with RNB Associates, Inc., and the entity's complete capitalization table (including the identity of every shareholder, each holder's share count and ownership percentage, and any convertible notes, stock options, or warrants).

Defendants sent plaintiff's counsel a meet-and-confer letter on or about June 15, 2025 identifying the grounds for a motion to quash. On June 17, 2025, plaintiff's counsel declined to withdraw the subpoena.

Defendants now move to quash the subpoena and seek monetary sanctions in the amount of \$2,670.00.

### **LEGAL STANDARD**

Code of Civil Procedure section 1987.1, subdivision (a) provides that the court may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. The court may make such orders to protect any person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

Code of Civil Procedure section 2017.010 defines the scope of discovery: any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.

Where privacy rights are implicated, the party seeking discovery must demonstrate that the information sought is directly relevant to the claims or defenses in the action and essential to a fair resolution of the lawsuit.

California Civil Code section 3295, subdivision (c) provides that a plaintiff may not obtain discovery of a defendant's financial condition unless the court enters an order permitting such discovery upon a noticed motion showing substantial probability that the plaintiff will prevail on the punitive damages claim.

### **ANALYSIS**

#### **A. Procedural Deficiency**

The subpoena is procedurally defective. A subpoena for production of personal records of a consumer must comply with the notice-to-consumer requirements of Code of Civil Procedure section 1985.3. The subpoena served here lacks a signed notice to consumer and a signed proof of service for that notice. The absence of a properly executed notice to consumer is a jurisdictional defect.

#### **B. Relevance and Scope of Discovery**

The subpoena sweeps extraordinarily broadly. It seeks all records from Borelli Investment Company without any temporal limitation whatsoever. The categories requested are facially unlimited. The subpoena demands every share register, all board composition records, all bylaws, all bank accounts, all corporate minute books, all trust accounts, all transactions, all correspondence, all contracts, and complete capitalization tables—without limitation as to subject matter, transaction type, or nexus to plaintiff's employment.

Plaintiff has offered no explanation of how Borelli Investment Company connects to her claims, which projects (if any) involving this entity triggered her right to compensation under the prenuptial agreement, or why comprehensive corporate governance and financial records

dating back to the entity's inception are necessary to prove unpaid wages or breach of an employment-related distribution agreement.

The complaint alleges that plaintiff was entitled to 25% distributions from certain business ventures in which she served as CFO and that defendants concealed projects and misclassified income to avoid these payments. Discovery directed at identifying specific projects, transactions, or income streams that allegedly should have generated distributions to plaintiff falls within the scope of Code of Civil Procedure section 2017.010. But this subpoena makes no effort to cabin its requests to such matters. It demands the entire corporate and financial universe of a third-party entity over an unlimited time span, without any showing that this entity relates to a project in which plaintiff served as CFO, a venture covered by the prenuptial agreement, or a transaction concealed from plaintiff.

The information sought by the subpoena has no relationship to the claims at issue in this case. The requests do not seek documents pertaining to specific projects or distributions allegedly owed to plaintiff. They seek comprehensive corporate governance materials—share registers, board composition, bylaws, minute books—that bear no discernible connection to whether plaintiff is owed unpaid wages, paid time off, overtime, or distributions under the prenuptial agreement.

The temporal scope raises additional concerns. The complaint's longest-running claims carry a four-year statute of limitations under the Labor Code, yet the subpoena imposes no time limitation and thus reaches back to the inception of the entity. Plaintiff has not explained why documents predating her 2009 employment, let alone predating the 2016 prenuptial agreement that forms the basis for her distribution claims, would be relevant or reasonably calculated to lead to admissible evidence.

### **C. Privacy and Confidentiality**

The subpoena implicates substantial privacy interests. Financial information—including bank records, trust accounts, and complete capitalization tables identifying all shareholders—enjoys constitutional protection under Article I, section 1 of the California Constitution. The subpoena seeks private information, the disclosure of which would impair the privacy rights of both defendant Borelli and multiple third parties. The capitalization table would inherently reveal the identities of all shareholders (individuals, trusts, or entities), their ownership percentages, and information about convertible notes, stock options, and warrants. Bank account records and trust account information would expose confidential financial affairs of the entity and its owners.

Where a privacy interest is implicated, the burden shifts to the party seeking discovery to demonstrate that the information sought is directly relevant to a claim or defense and that it is essential to fairly resolving the matters in dispute. Plaintiff must also show the information is not available through less intrusive means. Plaintiff has made no such showing here.

While corporations have a lesser right to privacy than individuals, some privacy rights remain. The strength of the privacy right asserted by a non-human entity depends on the circumstances, including the nexus between the entity and human beings and the context in which the controversy arises. Here, the requested records would necessarily disclose the identities and financial interests of individual shareholders and trust beneficiaries who are not parties to this lawsuit.

Moreover, a company has a right to protect its confidential and trade secret information, which includes its financial affairs and business operations. The comprehensive production demanded by this subpoena—spanning all corporate governance documents, all financial accounts, all transactions, all contracts, and all correspondence—would expose proprietary business information to which plaintiff has demonstrated no particularized need.

#### **D. Premature Financial Discovery**

Civil Code section 3295, subdivision (c) prohibits discovery of a defendant's financial condition in connection with a punitive damages claim unless the plaintiff first makes a prima facie showing of punitive damages. Plaintiff has yet to establish grounds for punitive damages in this lawsuit. While some of the subpoenaed categories might relate to proving the existence of projects or income streams allegedly concealed from plaintiff, the comprehensive financial records demanded—particularly capitalization tables, all bank accounts, all trust accounts, and complete transaction histories—appear directed at establishing defendants' financial condition and the ownership structure of affiliated entities. Without a court order under Civil Code section 3295, subdivision (c), such discovery is premature.

#### **E. Third-Party Burden**

The subpoena imposes an unreasonable burden on Borelli Investment Company, a third-party non-litigant. The entity is commanded to produce unlimited corporate governance records and comprehensive financial records without any temporal or subject-matter limitation—a task requiring significant time, expense, and disruption to its business. Courts must protect third parties from unreasonable or oppressive demands under Code of Civil Procedure section 1987.1.

### **SANCTIONS**

Code of Civil Procedure sections 1987.1, subdivision (a) and 1987.2, subdivision (a) authorize the court to award reasonable expenses, including attorney's fees, if a motion to quash is granted and the opposition was without substantial justification. Monetary sanctions are mandatory unless the court finds substantial justification or that other circumstances make imposition unjust.

Plaintiff issued a subpoena of extraordinary breadth with no temporal limitation, failed to articulate any nexus between Borelli Investment Company and her employment claims, served a procedurally deficient notice to consumer, and refused to withdraw or amend the subpoena after defendants' meet-and-confer efforts. The record discloses no substantial justification for the subpoena as issued. Plaintiff has not filed an opposition explaining or defending the subpoena.

Defendants seek \$2,670.00 in attorney's fees, computed as follows: six hours of associate time at \$275 per hour (\$1,650.00), plus three hours of partner time at \$340 per hour (\$1,020.00).

The rates are reasonable for experienced civil litigators in this jurisdiction. The time expenditure is reasonable for preparing a motion to quash with supporting separate statement and declaration. Plaintiff's failure to justify the subpoena or oppose this motion confirms that defendants' efforts were necessitated by an unjustified discovery demand.

### **DISPOSITION**

The motion to quash the deposition subpoena issued to Borelli Investment Company (aka R.N. Borelli, Inc.) is **GRANTED**. The subpoena is quashed in its entirety.

Monetary sanctions are awarded against plaintiff Norma Navarro and her counsel of record, jointly and severally, in the amount of \$2,670.00, payable to defendants' counsel within thirty (30) days of the date of this order.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

- oo0oo -

**Calendar Line 7**

**Case Name:** *Norma Navarro v. Ralph Borelli et al.*

**Case No.:** 24CV453643

DEFENDANTS' MOTION FOR PROTECTIVE ORDER TO EXCLUDE A THIRD-PARTY WITNESS FROM ATTENDING PLAINTIFF'S DEPOSITION; MOTION TO COMPEL PLAINTIFF'S DEPOSITION, AND REQUEST FOR MONETARY SANCTIONS AGAINST PLAINTIFF AND HER COUNSEL

**BACKGROUND**

On December 10, 2024, plaintiff filed a lawsuit against defendants, alleging sixteen causes of action arising from plaintiff's employment with defendant RNB Associates, Inc.

On or about May 9, 2025, plaintiff served responses to defendants' Requests for General Interrogatories, Set One. In response to Interrogatory No. 12.1, plaintiff identified her daughter, Liz Hawkins, as a witness to the allegations in the complaint. Plaintiff also produced email communications between herself and Ms. Hawkins exchanged during the course of plaintiff's employment with RNB Associates, Inc., which reference the prenuptial agreement between plaintiff and defendant Borelli and address plaintiff's earnings and compensation from RNB Associates, Inc.

Following two prior attempts to schedule plaintiff's deposition, on September 23, 2025, defendants served a Second Amended Notice of Deposition setting plaintiff's deposition for October 27, 2025.

On October 27, 2025, counsel for the parties appeared for plaintiff's deposition in San Jose, California. Plaintiff appeared with both of her counsel of record and with Ms. Hawkins, who is employed as a paralegal by plaintiff's counsel. Ms. Hawkins had previously been identified in discovery as plaintiff's daughter and as a witness to the allegations in the complaint. Travis Whitfield, counsel of record for Ralph N. Borelli as Trustee of the Ralph N. Borelli Revocable Trust, was also present.

Prior to going on the record, counsel discussed Ms. Hawkins' presence at the deposition. Once on the record, defendants' counsel objected to Ms. Hawkins' attendance on the ground that she had been identified as a third-party witness through discovery and was not counsel of record for plaintiff. Plaintiff's counsel declined to remove her from the deposition.

Plaintiff's counsel, in turn, objected to Mr. Whitfield's presence, asserting that he had previously "acted as counsel" for plaintiff, though no attorney-client relationship between Mr. Whitfield and plaintiff was identified at that time or thereafter. That objection was raised for the first time at the October 27 deposition. Mr. Whitfield is counsel of record for defendant Ralph N. Borelli as Trustee of the Ralph N. Borelli Revocable Trust and filed an answer to plaintiff's complaint on that defendant's behalf on November 24, 2025.

The deposition did not proceed. Plaintiff's counsel has not since agreed to schedule plaintiff's deposition without Ms. Hawkins in attendance.

Defendants now move for a protective order excluding Liz Hawkins from attending plaintiff's deposition, an order compelling plaintiff to appear for her deposition within thirty days, and monetary sanctions against plaintiff and her counsel jointly and severally in the amount of \$7,185.00.

## **LEGAL STANDARD**

### **A. Protective Orders**

Code of Civil Procedure section 2025.420, subdivision (a) provides that before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.

Code of Civil Procedure section 2025.420, subdivision (b) authorizes the court to issue various forms of protective relief, including that the deposition be taken only on certain specified terms and conditions, and that designated persons, other than the parties to the action and their officers and counsel, be excluded from attending the deposition.

The moving party must establish good cause for the protective order sought.

### **B. Motion to Compel Deposition**

Code of Civil Procedure section 2025.450, subdivision (a) provides that if, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, without having served a valid objection under section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document described in the deposition notice.

Code of Civil Procedure section 2025.450, subdivision (b) provides that a motion to compel shall be accompanied by a meet and confer declaration stating facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.

## **SANCTIONS**

Code of Civil Procedure section 2025.420, subdivision (h) provides that the court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Code of Civil Procedure section 2025.450, subdivision (g)(1) provides that if a motion to compel is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

## **ANALYSIS**

### **A. Procedural Deficiency: Meet and Confer**

Code of Civil Procedure section 2025.450, subdivision (b) requires that a motion to compel be accompanied by a meet and confer declaration stating facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. The moving papers reference the October 27, 2025 deposition and the on-the-record colloquy between counsel concerning Ms. Hawkins' presence, but no declaration accompanies the motion establishing what efforts defendants made after October 27, 2025 to meet and confer with plaintiff's counsel to resolve the dispute informally before filing this motion on January 8, 2026.

Similarly, although Code of Civil Procedure section 2025.420 does not expressly require a meet-and-confer declaration for a motion for protective order, the court considers whether the parties made good faith efforts to resolve discovery disputes informally before seeking judicial intervention.

Without a declaration or other evidence showing the content and timing of meet-and-confer communications following the aborted deposition, the court cannot conclude that defendants satisfied their obligation to attempt informal resolution in good faith. This deficiency is particularly significant given the two-and-a-half-month interval between the October 27, 2025 deposition and the January 8, 2026 filing of this motion.

### **B. The Protective Order Request: Exclusion of Liz Hawkins**

Code of Civil Procedure section 2025.420, subdivision (b)(12) expressly authorizes the court to exclude designated persons, other than the parties to the action and their officers and counsel, from attending a deposition. The statute reflects the Legislature's recognition that good cause may exist to exclude third-party observers from a deposition, particularly where their presence may prejudice a party's legitimate interests.

Plaintiff identified Ms. Hawkins in response to General Interrogatory 12.1 as a witness. Plaintiff also produced email communications between herself and Ms. Hawkins that reference

the prenuptial agreement, plaintiff's earnings, and compensation. The record establishes that Ms. Hawkins has been identified as having knowledge of facts relevant to plaintiff's claims.

When a person has been identified as a witness and may later be deposed or called as a witness, the noticing party has a legitimate interest in preventing that person from attending another witness's deposition. The concern is that Ms. Hawkins' presence during plaintiff's deposition would allow her to hear plaintiff's testimony in detail before giving her own account, creating the opportunity for her later testimony to be influenced by what she heard. This concern is particularly acute when the prospective witness is the deponent's daughter.

Plaintiff's counsel has not articulated any reason why Ms. Hawkins' presence is necessary. Ms. Hawkins is not counsel of record. She is a paralegal employed by plaintiff's counsel's law firm, but plaintiff appeared at the October 27, 2025 deposition with two licensed attorneys. The presence of a paralegal who is also the deponent's daughter and an identified witness serves no discernible function beyond observation—precisely the concern that justifies exclusion under section 2025.420, subdivision (b)(12).

Defendants' request is narrowly tailored. It seeks only to exclude one specific individual—an identified witness—from one specific deposition. The court finds good cause for the protective order under Code of Civil Procedure section 2025.420.

### **C. The Motion to Compel Plaintiff's Deposition**

Defendants also move to compel plaintiff to appear for her deposition within thirty days of the court's order. Code of Civil Procedure section 2025.450, subdivision (a) authorizes a party to move to compel when a deponent fails to appear for examination or to proceed with it after proper notice.

Plaintiff appeared at the October 27, 2025 deposition but the deposition did not proceed due to the dispute over Ms. Hawkins' attendance. A party who conditions her participation in the deposition on terms that exceed her legal rights has not, in substance, appeared for the deposition as noticed.

However, the court's ruling on the protective order resolves the dispute that prevented the deposition from proceeding. With the issuance of a protective order excluding Ms. Hawkins, the impediment to plaintiff's deposition is removed. The appropriate remedy is to order plaintiff to appear for her deposition within a reasonable time, subject to the protective order.

The court finds good cause to compel plaintiff's deposition under Code of Civil Procedure section 2025.450. Plaintiff shall appear for and complete her deposition within thirty (30) days of the date of this order, without Liz Hawkins present.

### **SANCTIONS**

Defendants seek monetary sanctions against plaintiff and her counsel, jointly and severally, in the amount of \$7,185.00. The moving papers do not include a declaration establishing the billing rates, hours expended, or calculation underlying this amount. Without such a declaration, the court cannot assess the reasonableness of the fees requested or determine what portion, if any, of the claimed amount is attributable to this motion.

Code of Civil Procedure section 2025.420, subdivision (h) requires the court to impose sanctions against a party who unsuccessfully opposes a motion for a protective order unless that party acted with substantial justification or other circumstances make sanctions unjust. Code of Civil Procedure section 2025.450, subdivision (g)(1) requires the court to impose sanctions in favor of the party who noticed the deposition and against the deponent if a motion to compel is granted, subject to the same exceptions.

Plaintiff has not opposed this motion. Plaintiff's refusal to proceed with the deposition unless Ms. Hawkins attended, despite having identified Ms. Hawkins as a witness and having two attorneys present, supports an award of sanctions. However, the absence of a declaration establishing the amount of attorney time expended and the applicable billing rates precludes the court from awarding the requested sum.

Moreover, defendants' apparent failure to satisfy the meet-and-confer requirement weighs against an award of sanctions at this time. Code of Civil Procedure section 2025.450, subdivision (b)(2) requires a showing of a reasonable and good faith attempt at informal resolution before moving to compel. Defendants have not demonstrated compliance with this requirement. While plaintiff's position on Ms. Hawkins' attendance lacks substantial justification, defendants' procedural deficiency makes an award of sanctions inappropriate at this juncture.

The motion for sanctions is DENIED without PREJUDICE.

#### **DISPOSITION**

The motion for a protective order to exclude Liz Hawkins from attending plaintiff's deposition is GRANTED. Liz Hawkins shall not attend plaintiff's deposition.

The motion to compel plaintiff's deposition is GRANTED. Plaintiff Norma Navarro shall appear for and complete her deposition within thirty (30) days of the date of this order. The deposition shall proceed subject to the protective order issued herein.

The request for monetary sanctions is DENIED without prejudice. If defendants wish to renew their request for sanctions, they shall first demonstrate compliance with the meet-and-confer requirement of Code of Civil Procedure section 2025.450, subdivision (b) and provide a declaration establishing the reasonable attorney's fees and costs incurred in connection with this motion.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

**Calendar Line 8****Case Name:** *Norma Navarro v. Ralph Borelli et al.***Case No.:** 24CV453643**DEFENDANTS' MOTION TO CONSOLIDATE****BACKGROUND**

This civil action was filed on December 10, 2024, alleging sixteen causes of action arising from plaintiff's employment with defendant RNB Associates, Inc. Plaintiff was employed by RNB Associates beginning in 2009 and married defendant Ralph N. Borelli in 2016. Plaintiff's employment was terminated on July 31, 2024.

A related family law case between the same parties — Ralph Borelli v. Norma Navarro, Santa Clara Case No. 24FL003444C — was filed in Santa Clara Family Court on October 15, 2024, and remains pending as a dissolution proceeding.

On March 7, 2025, defendants filed a Notice of Related Case identifying the family law matter and asserting that the two actions involve the same parties, arise from substantially identical transactions and events, present the same questions of law and fact, and involve claims to the same property.

Plaintiff filed a response on March 10, 2025, objecting to consolidation. Plaintiff took the position that this civil action arises out of her employment with RNB Associates — a corporation operated by her husband — and rests on employment contracts entered into with defendants prior to the marriage, including a 2013 employment agreement. Plaintiff maintained that she does not contest the pre-nuptial agreement or community property rights in this action, but seeks only to enforce a provision entitling her to 25% of specific business ventures for which she alleges she was not compensated. Plaintiff further asserted that consolidation in family court would violate her right to a jury trial on her employment, fraud, and other civil claims.

On December 30, 2025, defendants filed the present motion to consolidate the two actions. Defendants seek complete consolidation of the family law action and this civil action in family court. Defendants contend that both cases arise from the same facts — plaintiff's employment with RNB Associates and her former marriage to Mr. Borelli — and that plaintiff seeks damages in both for alleged violations of the pre-nuptial agreement executed by the parties on April 21, 2016. Defendants characterize the two cases as involving identical facts, legal theories, and parties.

Defendants describe the pre-nuptial agreement as central to both actions. Under the agreement, the parties' salaries, wages, distribution payouts, and other personal-services compensation (with the exception of pension benefits) are to remain the separate property of the earning spouse. Section 10 of the agreement contemplates a further writing granting plaintiff 25% of the distributions payable to RNB Associates from liquidity events involving certain enumerated projects.

Defendants contend that a determination of whether Mr. Borelli complied with the pre-nuptial agreement will be dispositive in both actions, and that consolidation would advance judicial economy, reduce litigation costs, and eliminate the risk of inconsistent rulings.

Defendants rely on Code of Civil Procedure section 1048(a), which authorizes joint hearings, joint trials, and consolidation of pending actions involving common questions of law or fact, together with California Rules of Court, rules 3.300 and 3.350.

The record does not reflect that plaintiff filed an opposition to this motion. The court notes, however, that plaintiff previously filed a response to the Notice of Related Case objecting to consolidation on substantially the same grounds that would apply to this motion.

### **ANALYSIS**

This motion presents a procedural question involving whether to consolidate a family law dissolution proceeding with a civil employment action.

#### **Common Questions of Law and Fact**

The court acknowledges substantial overlap between the two cases. Both actions involve interpretation and enforcement of the April 21, 2016 pre-nuptial agreement between plaintiff and defendant Ralph Borelli.

Plaintiff's own discovery responses in this civil action have relied on the pre-nuptial agreement. Plaintiff has identified the 2016 pre-nuptial agreement as among the agreements governing the employment relationship and has stated that she complained to Mr. Borelli about his failure to comply with its terms. In responding to damages discovery, plaintiff has attributed her claimed losses to unpaid 25% shares of business transactions, estimated to exceed \$800,000.

However, the overlap is not complete. The civil complaint includes sixteen causes of action: (1) Breach of Contract – Employment Agreement; (2) Breach of Implied-In-Fact Contract – Employment; (3) Violation of Labor Code section 227.3 and penalties under Labor Code section 203(a)–(b) (PTO); (4) Breach of April 26, 2016 Agreement; (5) Violation of Labor Code section 201 and penalties under section 203 (commissions/profits); (6) Intentional Misrepresentation (Fraud); (7) Negligent Misrepresentation; (8) Elder Abuse; (9) Breach of the Covenant of Good Faith and Fair Dealing; (10) Unjust Enrichment; (11) Wage Discrimination

in violation of Labor Code section 1197.5; (12) Wage Discrimination in violation of Government Code section 12940; (13) Violation of Labor Code sections 510 and 201 and penalties under section 203 (unpaid overtime); (14) Demand for Accounting; (15) Intentional Infliction of Emotional Distress; and (16) Defamation. Plaintiff's claims thus extend well beyond the pre-nuptial agreement to statutory wage and hour claims, fraud claims based on alleged concealment of projects on which she was to be compensated as CFO, wage discrimination claims, and an elder abuse claim.

### **Right to Jury Trial**

A threshold issue is plaintiff's constitutional and statutory right to a jury trial on her civil claims. The complaint demands a jury trial, and plaintiff has expressly invoked her right to a jury trial under Code of Civil Procedure section 631 in objecting to consolidation.

Defendants seek consolidation in the family court. Family law dissolution proceedings are equitable in nature and do not provide a right to jury trial. Consolidating this civil action into family court as requested by defendants would deprive plaintiff of her jury trial right on claims that would otherwise be triable to a jury.

Defendants do not address this issue in their moving papers or propose any mechanism to preserve plaintiff's jury trial rights if consolidation were granted.

### **Type of Consolidation Sought**

Defendants seek a complete consolidation of the two actions in Santa Clara Family Court, resulting in a single action. As defendants recognize, consolidation may take two forms: a complete consolidation that merges the actions into one, or a consolidation for trial only.

Complete consolidation would merge the pleadings and result in a single judgment. This would require transferring the civil action to family court or the family law action to civil court. Defendants specifically request consolidation in family court, which would eliminate the procedural framework for jury trial and adjudication of statutory Labor Code claims.

### **Jurisdictional and Procedural Framework**

Defendants argue that the family court has statutory jurisdiction to determine the parties' property rights in the context of a dissolution proceeding. While that is generally so as to marital property characterization, plaintiff represents that no real property is at issue in the civil action and that her claims — employment and business-transaction claims that would exist regardless of the marriage — are not property-characterization claims.

The civil complaint includes claims under the Labor Code that carry specific procedures, statutes of limitations, remedies, and penalties not available in family law proceedings. Plaintiff represents that the issues remaining in the dissolution proceeding are largely contractual — reimbursements for life insurance, medical and living expenses, and spousal support — and do not involve any corporate defendant.

### **Practical Considerations and Prejudice**

Defendants argue that consolidation would avoid duplicative discovery and inconsistent rulings, pointing to disputes in which plaintiff has invoked family-law authority — including a Family Code section 1617 tolling theory — to expand the scope of discovery in this civil action and has declined to withdraw allegedly overbroad subpoenas.

However, these discovery disputes can be managed through coordination and case management rather than complete consolidation. The loss of a jury trial right and the procedural

complications of litigating Labor Code claims in family court constitute substantial prejudice to plaintiff.

Defendants have not demonstrated that maintaining separate actions causes prejudice beyond increased litigation costs, which naturally result when related cases are pending.

## **CONCLUSION**

While the court recognizes factual overlap between the two actions, particularly with respect to the interpretation of the pre-nuptial agreement, complete consolidation in family court is not appropriate under these circumstances.

The requested consolidation would deprive plaintiff of her constitutional right to a jury trial on civil claims that are properly triable to a jury. Defendants have not proposed any mechanism to preserve plaintiff's jury trial rights.

Furthermore, while both actions involve the pre-nuptial agreement, plaintiff's civil complaint includes numerous causes of action that involve statutory Labor Code claims with specific procedures and remedies not available in family law proceedings.

The interests of judicial economy can be served through case management tools, including coordination of discovery between the two actions and protective orders.

Accordingly, the motion to consolidate is DENIED.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

- 00000 -

**Calendar line 9****Case Name:** *Trevor Lewerenz v. Ford Motor Company***Case No.:** 25CV465220**PLAINTIFF'S MOTION FOR ATTORNEY'S FEES AND COSTS****BACKGROUND**

This is a lemon law case arising under the Song-Beverly Consumer Warranty Act (Civil Code section 1790 et seq.). On or around September 28, 2022, Plaintiff purchased a 2022 Ford Maverick. After taking possession, Plaintiff experienced multiple problems with the vehicle that required repeated visits to Ford dealerships. Before filing suit, Plaintiff requested that Ford repurchase the Subject Vehicle; Ford denied the request on February 14, 2025. Plaintiff retained counsel on March 25, 2025, filed the complaint on May 6, 2025, and Ford answered on June 12, 2025. The parties mediated on January 23, 2026 and reached an agreement resolving the matter. Plaintiff signed the written Settlement Agreement on March 26, 2026. Under the settlement, Ford agreed to pay a total of \$35,000.00 — a \$21,239.45 payoff of Plaintiff's outstanding loan balance to Wells Fargo Auto plus a \$13,760.55 direct payment to Plaintiff — in exchange for the return of the Subject Vehicle.

The Settlement Agreement provides that "Defendant agrees Plaintiff is the prevailing party for purposes of a motion for attorneys' fees, costs, and expenses to be determined by the Court by way of a noticed motion pursuant to Civil Code section 1794(d)." Plaintiff now seeks \$18,460.00 in attorneys' fees and \$1,209.75 in costs and expenses, for a total award of \$19,669.75. Ford opposes on two grounds: (1) the \$600 hourly rate for attorney Matthew Faler is unreasonable and should be reduced to between \$350 and \$450 per hour; and (2) approximately 32% of the work claimed as attorney time should have been performed by Plaintiff's paralegal at a lower rate.

**LEGAL STANDARD**

The Song-Beverly Act provides that "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (§ 1794(d).)

California courts use the lodestar method to determine reasonable attorneys' fees. The lodestar is calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. The reasonable hourly rate is the prevailing market rate in the relevant community for similar work by attorneys of comparable skill and experience. The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate. Once the lodestar amount is calculated, the court may adjust it upward or downward based on case-specific factors, including the novelty and complexity of the issues, the skill displayed by counsel, and the results obtained.

The prevailing party has the burden of establishing that the hours claimed were actually expended and that both the hours and the rates were reasonable.

## ANALYSIS

There is no dispute that Plaintiff is the prevailing party under the terms of the settlement agreement. Ford has stipulated to Plaintiff's prevailing party status. Accordingly, Plaintiff is entitled to a reasonable award of attorneys' fees, costs, and expenses.

### REASONABLE HOURLY RATE

#### **A. Attorney Matthew E. Faler**

Plaintiff requests an hourly rate of \$600 for attorney Matthew E. Faler. Mr. Faler was admitted to the California State Bar in June 2006 and represents that he has extensive California practice experience and has handled hundreds of Song-Beverly and auto-fraud matters. Mr. Faler and paralegal Casandra Castellon were the only billers on this file.

Ford argues that the requested rate is excessive for the prevailing market and should be reduced to between \$350 and \$450 per hour.

Plaintiff responds that the case was staffed leanly with a single attorney and one paralegal, that Mr. Faler's approximately 20 years of experience and substantial Song-Beverly practice justify the requested rate, and that Ford's proposed range does not reflect current market rates for experienced lemon-law counsel.

The Court has reviewed the billing records submitted in this case. The matter was staffed efficiently with only attorney Faler and paralegal Casandra Castellon performing billable work. Lean staffing of this kind reduces duplication and inefficiency, and the Court credits it in setting a reasonable rate.

The Court exercises its discretion based on its own knowledge and familiarity with the legal market for lemon law cases. Mr. Faler was admitted to the California State Bar in June 2006, giving him approximately 20 years in practice, and represents that he has handled hundreds of Song-Beverly and auto-fraud matters. The Court credits that experience and the efficient, one-attorney staffing of this file. Balancing counsel's substantial experience against the prevailing market rate for Song-Beverly work and the routine, straightforward character of this dispute — a case that resolved at mediation approximately eight months after filing, without dispositive motion practice or trial — the Court finds that a reasonable hourly rate for Mr. Faler is **\$500 per hour**. That rate credits his tenure and experience while remaining calibrated to the modest complexity of the matter and its early resolution.

#### **B. Paralegal Casandra Castellon**

Plaintiff requests \$125 per hour for paralegal Casandra Castellon, who has worked for the firm for about one year and holds a college degree. Ford does not object to the paralegal rate of \$125 per hour. The Court finds this rate reasonable for paralegal work in Song-Beverly matters in Santa Clara County. The rate is approved.

### HOURS REASONABLY EXPENDED

#### **A. Total Hours Claimed**

The billing records show the following breakdown:

Work product: \$9,640.00

Email correspondence: \$7,500.00

Phone calls: \$1,320.00

The work-product log reflects 15.9 attorney hours by Mr. Faler at \$600 and 0.8 paralegal hours by Ms. Castellon at \$125, totaling \$9,640.00 (with a \$100 arithmetic discrepancy in the declaration).

The email log reflects 12.5 attorney hours at \$600 per hour, totaling \$7,500.00.

The phone log reflects 2.2 attorney hours totaling \$1,320.00.

Total attorney time claimed: approximately 30.6 hours

Total paralegal time claimed: 0.8 hours

## **B. Ford's Objections**

Ford contends that approximately 32% of the tasks billed at Mr. Faler's attorney rate should have been performed by a paralegal, not at a \$600 attorney rate. Ford does not, however, identify which specific tasks it means.

Plaintiff responds that Ford's failure to identify particular entries makes the objection impossible to answer directly. Plaintiff further explains that Ms. Castellon was hired in August 2025 with no prior paralegal or legal-assistant experience, learned quickly, and assumed full paralegal duties by November 2025, and that Mr. Faler remains the sole attorney in the firm's lemon department and therefore performs the necessary tasks on each case.

### **Analysis**

The Court has carefully reviewed the detailed billing records at Exhibits 6, 7, and 8 attached to the Appendix of Exhibits. The Court finds that the vast majority of work performed by Mr. Faler required attorney-level skill and judgment. The work included case intake and evaluation, complaint drafting, discovery, mediation preparation and attendance, and post-mediation settlement negotiations. Ford's blanket assertion that 32% of the work should have been performed by a paralegal is unsupported by specific objections to particular billing entries.

The Court's independent review of the email log confirms that a substantial portion of the 12.5 attorney hours claimed for email correspondence consists of one- and two-line exchanges billed in 0.1-hour increments — repeated document-forwarding messages, scheduling confirmations, brief acknowledgments, and mediation-logistics traffic. Exhibit in Support of Motion for Attorneys' Fees. Those tasks either could have been delegated to the paralegal at \$125 per hour or handled in less attorney time. Mr. Faler is an experienced Song-Beverly practitioner, and this case, which settled at mediation approximately eight months after filing did not present the volume or complexity of correspondence one would expect in a litigated matter.

The Court reduces the email correspondence time from 12.5 hours to 8.5 hours — a 4.0-hour reduction — to account for administrative and repetitive communications that either consumed excessive attorney time or should have been performed by the paralegal.

Reasonable attorney email time: 8.5 hours (12.5 hours claimed minus 4.0 hours)

Attorney phone time: 2.2 hours (approved as claimed)

Paralegal time: 0.8 hours (approved as claimed) Ex. in Supp. of Mot. for Att'y's Fees.

Ford observes that Mr. Faler billed 5.0 hours on July 16, 2026 for drafting the fee motion and closing tasks at \$600 per hour.

The Court agrees the entry warrants reduction, though not on the meet-and-confer theory Ford advances. The settlement agreement expressly contemplated a noticed motion for fee

determination, and Ford cites no authority requiring pre-motion negotiation over statutory fees. The reduction is warranted for a different reason: this is a routine Song-Beverly fee motion filed by an attorney with a substantial Song-Beverly and auto-fraud practice. The moving papers rely on the standard lodestar framework and the settlement's stipulation to prevailing-party status. For counsel of Mr. Faler's experience preparing this type of motion, 5.0 hours is excessive. The Court finds that 3 hours is a reasonable amount of attorney time for the memorandum, supporting declaration, exhibits, and request for judicial notice, and reduces the work-product time by 2 hours accordingly.

The Court further notes that Plaintiff did not request any prospective time for reviewing Ford's opposition, drafting the reply, or attending the hearing on this motion. The reply declaration adds no supplemental hours. No adjustment on that front is therefore required.

### **MULTIPLIER**

No multiplier has been requested. None is warranted. This was a routine Song-Beverly case that settled at mediation without trial. While the result obtained was favorable to Plaintiff, the case did not involve novel legal issues, exceptional risk, or other factors that would justify enhancement of the lodestar.

### **COSTS AND EXPENSES**

Plaintiff seeks \$1,209.75 in costs and expenses, itemized as follows:

| <b>Expense</b>                                                         | <b>Amount</b> |
|------------------------------------------------------------------------|---------------|
| Complaint eFiling Fee (On-Call Legal, Inv. 471179)                     | \$513.48      |
| Service of Process on Ford Motor Company (On-Call Legal, Inv. 471179A) | \$119.53      |
| eFiling Fee (On-Call Legal, Inv. 520571)                               | \$34.68       |
| eFiling Fee (On-Call Legal, Inv. 534983)                               | \$38.68       |
| eFiling Fee (On-Call Legal, Inv. 539194)                               | \$38.38       |
| Plaintiff's share of mediator fee (WDRS Hazelton)                      | \$300.00      |
| Motion Fee for Attorneys' Fees                                         | \$60.00       |
| eFiling Fee for Attorneys' Fees Motion (est.)                          | \$35.00       |
| eFiling Fee for Reply (est.)                                           | \$35.00       |
| eFiling Fee for Request for Dismissal (est.)                           | \$35.00       |
| Total                                                                  | \$1,209.75    |

Ford does not oppose the claimed costs.

The Court finds that all claimed costs were reasonably incurred in connection with the commencement and prosecution of this action. Civil Code section 1794(d) permits recovery of

costs and expenses beyond those listed in Code of Civil Procedure section 1033.5, including mediation fees and electronic filing fees. The costs are approved as requested: \$1,209.75.

**DISPOSITION**

Plaintiff's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED IN PART.

Plaintiff shall prepare and submit a proposed order consistent with this ruling, setting forth the final recalculated fee amount, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

Defendant shall pay attorneys fees and costs within 30 days of entry of the signed order.

- oo0oo -